DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

Index as:

Crime Scene Processor

Collecting of Evidence

Crime Scene Equipment

Packaging of Evidence

Marking or Labeling of Physical Evidence

Evidence Receipt Form

Fingerprints

Crime Scene Investigation Reporting

EVIDENCE COLLECTION AND PRESERVATION OPERATIONS

I. PURPOSE:

A. The purpose of this General Order is to establish guidelines and procedures for the collection and preservation of evidence by Department officers, and to establish a system for the administrative processing and storing of evidence recovered from a crime scene.

B. It is the policy of the Olivette Police Department that all officers assigned to process the scene of a crime will protect, collect, and preserve all physical evidence that may lead to the apprehension of the perpetrator, and will ensure that all evidence that is collected will be processed or preserved for later analysis.

II. RESPONSIBILITY OF THE SCENE PROCESSOR:

A. As soon as a crime scene has been secured, the needs of the victims have been satisfied, and the safety of those present is assured, the officer will begin processing the scene. Officers will have access to crime scene processing equipment and supplies. Equipment and supplies include but are not limited to, additional personnel, portable fingerprint kit, digital camera, crime scene tape, evidence packaging supplies, notepads, tape measure, etc.

B. If the crime committed is of a serious nature and/or the crime scene is complex, the Chief of Police or Deputy Chief may request the assistance of a St. Louis County Police Department Crime Scene Unit to process the scene.

C. The responsibilities of the processing officer include but are not limited to:

1. Securing and protecting the crime scene,

2. Documenting all entries into the scene,

3. Photographing,

4. Diagramming,

5. Sketching,

6. Protecting, collecting, and preserving evidence,

7. Recovery of latent fingerprints, and

8. Accident investigation.

D. To prevent the destruction or the contamination of evidence, the assigned officer will initiate security measures to prevent unauthorized persons from entering the crime scene or the immediate area.

1. The security measures shall include:

a. Do not touch, move, or pick up objects; and

b. Do not disturb any article, mark or impression that may have been made by the criminal.

2. The assigned officer must also prevent others from altering or contaminating the area. The assigned officer must maintain this rigid security until all measurements have been made, the scene has been sketched, videotaped or photographed, the area has been thoroughly searched for fingerprints, tool marks, and the like, and all evidence has been collected.

III. COLLECTING OF EVIDENCE:

A. Collection methods used should preserve the condition of the evidence in the process of collection, prevent the introduction of foreign materials to it, and ensure as complete a sample as possible and practical.

B. When collecting evidence, the officer must look for those things that may be out of place or do not appear to "belong," regardless of their size or appearance. Do not disturb positions recorded on the crime scene sketch, until the scene has been fully photographed and processed for latent prints.

C. After completing the above preliminary tasks, the officer will carefully collect the evidence so that it is not damaged, altered or destroyed. Officers will wear gloves (i.e. Nitrile, latex, etc.) prior to touching any item or surface within a crime scene.

D. There will be occasions when evidence such as liquids, stains, paint scrapings, fibers and soil will be submitted for laboratory (scientific) examination. In these instances, a generous sampling of the material must be collected when possible.

E. Physical traces that may be used for comparison purposes, at a later date should be collected in major investigations of a serious crime against a person or property, etc. Typical items include hair found in fingernail scrapings or the clothing of the victim, fibers, insulation from a safe, soil from a crime or accident scene, tool marks, broken glass from headlight lenses, paint scrapings or chips found on the body of a traffic accident victim.

F. Gunshot residue tests may be administered in homicide cases, crimes where a gun was discharged, or at the discretion of the Bureau of Investigation supervisor.

G. When collecting DNA evidence, officers need to be aware that DNA evidence is more sensitive than other types of evidence. Officers should be especially aware of their actions at the scene to prevent inadvertent contamination of DNA evidence.

H. If collected evidence is transferred to another person or agency prior to being logged into the PMI Evidence Tracker System, documenting the transfer is critical to maintaining the chain of custody. The record of transfer of evidence should include the date, time, name of person receiving the evidence, reason for transfer, and a synopsis of the incident. The record of transfer information will be documented in the incident report.

IV. PROPER PACKAGING OF EVIDENCE:

A. Clothing collected at a crime scene that is wet or bloody will be placed in a paper bag. The officer seizing the clothing will transport the clothing to the Police Department and place the clothing in the Blood Dry Closet. Once dry, the Evidence Custodian will remove clothing and properly repackage the clothing. Packaged clothing with dried blood will be marked with bio-hazard warnings.

B. The officer will place each piece of evidence in separate containers. Pill boxes, envelopes, test tubes, jars, bottles, and cartons containing evidence will be sealed in such a manner that they cannot be opened without breaking the seal. Once a seal has been affixed to a container, the officer will place his/her initials across it. Only items such as similar types of drugs, currency, jewelry, etc., can be placed in the same evidence bags

and tagged under the same evidence tag. Unlike evidence must be placed in separate evidence bags and tagged separately *(i.e. jewelry, money, guns, and drugs).*

V. MARKING OR LABELING OF EVIDENCE:

A. When marking an item for future identification, the mark shall be:

1. Made as soon as possible by the officer receiving the item,

2. Made as small as possible,

3. Made distinctive and not easily duplicated, and

4. In places as to prevent alteration, contamination or destruction of evidence value or reduction of its market or intrinsic value.

B. An appropriate marking on an item or evidence for future identification shall include the officer's initials and DSN.

C. An item of evidence does not need to be specially marked for future identification when:

1. It bears a permanently inscribed serial number, and/or

2. Marking would alter it as to change its evidential value.

VI. PROCEDURES FOR EVIDENCE RECEIPT FORM:

A. Any member of the Department who has evidence that needs to be processed by the St. Louis County Police Crime Laboratory shall first inventory the evidence by noting it on the St. Louis County Police Department Evidence Receipt. Items taken to the laboratory may include but are not limited to: blood, blood stained objects, other physiological stains and tissue, biological materials, large and bulky items, firearms, drugs, and other items. All items taken to the laboratory should be prepared in a uniform manner that is consistent with the requirements of the St. Louis County Police Department Crime Laboratory. The Evidence Receipt Form will accompany the item and be properly completed with all available information.

B. Give as much information about the evidence as possible. The description should include:

1. Make,

2. Model and Model Number, if known,

3. Serial Number,

4. Color(s), and

5. Unique characteristics, markings, etc.

C. The officer transferring the evidence will complete the Chain of Custody Section. The officer transferring the evidence will then sign the form in "From" field. The officer or evidence technician receiving the evidence will sign the form in the "To" field. Each subsequent transfer of the evidence will be documented in the same "From/To" fashion. The documentation of transfer shall include:

1. The date,

2. His/her name, and

3. The reason that the evidence is out (i.e. transported to County Lab).

D. The evidence will then be sealed in an Olivette Police Department Evidence envelope with evidence tape and the Evidence Receipt attached. Officers will place their initials and DSN on the seal.

E. Evidence will be placed in a temporary holding locker. A copy of the Evidence Receipt is to be attached to the police report after completion.

F. The Evidence Custodian will not accept evidence without a properly completed Evidence Receipt Form. In cases where the form is not completed properly, the evidence will be left in the intermediate locker and notice will be given to the appropriate Commander from the Evidence Custodian indicating the deficiency. As soon as the seizing officer corrects the evidence receipt, the evidence will be processed by the Evidence Custodian.

G. The 3 ½" x 5" evidence tags will be used only for large items that will not fit into evidence bags or envelopes.

H. Evidence from felony cases require a St. Louis County Police Department Evidence Receipt regardless if the evidence will not be processed by the St. Louis County Police Crime Laboratory.

I. Perishable evidence (i.e. blood) that will need to be tested/examined will initially be stored in a lockable evidence refrigerator in the evidence packaging area. Once this is completed, the officer shall notify the Detective Bureau that the evidence was secured; the Detective Bureau will schedule a drop off appointment for the lab. Perishable evidence will be transferred to the Missouri State Highway Patrol Crime Laboratory or other approved facility by the Detective Bureau.

J. When laboratory results are returned, a supplemental report will be added to the original report stating the findings. The laboratory results will accompany the supplement report. Perishable evidence retrieved from a lab after testing/examination will be secured in a refrigerated temporary evidence locker awaiting transfer to the main Evidence room.

VII. PROCESSING/ DEVELOPING/LIFTING/LABELING FINGERPRINTS:

A. When an officer/detective processes a scene for latent fingerprints, the proper Department equipment (powder, brushes, tape, etc.), will be utilized.

B. If latent fingerprints are lifted from a scene, the following procedure will be followed:

1. The tape with the lifted print will be placed on the glossy side of the plain white or black fingerprint backing. On the back of the backing, the following information will be included:

a. Print A, B, C, etc.

b. Report Number,

c. Officer/Detective and DSN,

d. Location from where prints are lifted from, and

e. Date.

C. All latent fingerprint evidence will be stored in manila envelopes provided by the St. Louis County Police Department marked "Latent Fingerprint Evidence". The face of the envelope is to be completed by the officer who processed the scene.

D. The Bureau of Investigations will convey the fingerprint evidence to the St. Louis County Latent Print Laboratory for processing.

E. When evidence is conveyed to the station for latent print processing, the officer seizing the evidence or the St. Louis County Latent Lab Technicians will do the processing.

G. Elimination prints will be obtained from the victim(s) by this Department as soon as possible.

VIII. CRIME SCENE INVESTIGATION REPORTING:

A. If the officer processing the crime scene is not the reporting officer, the processing officer will prepare a CARE written supplement that will include the following information:

1. Date/Time of arrival at the scene,

2. Location of the crime,

3. Name of victim(s), if known,

4. Action taken at the scene (i.e. number of photographs taken, measurements taken, and a listing of physical evidence recovered),

5. Report Number, and

6. Fingerprint processing results whether negative or positive.

B. When crime scenes are not processed, the reporting officer will state the reasons why in the narrative portion of the report.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
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